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October 9, 2015					
FEDERAL MARITIME COMMISSION					

FEDERAL MARITIME COMMISSION

DOCKET NO. 15-02

COMBUSTION STORE LIMITED

v.

UNIGROUP WORLDWIDE, INC.

**ORDER AMENDING CAPTION AND
GRANTING MOTION FOR LEAVE TO AMEND
COMPLAINT TO PROVIDE ADDITIONAL VERIFICATION**

On May 1, 2015, Combustion Store Limited filed a Complaint identifying “UniGroup Worldwide – UTS” as the respondent and identifying UniGroup as an ocean transportation intermediary (OTI). On June 19, 2015, Respondent filed a motion to dismiss the Complaint. In its motion to dismiss, Respondent states that its correct name is UniGroup Worldwide, Inc. I take official notice, 46 C.F.R. § 502.226, that UniGroup Worldwide, Inc., is licensed by the Commission as a non-vessel-operating common carrier, FMC NVOCC list, <http://www2.fmc.gov/oti/NVOCC.aspx>, last visited Sept. 22, 2015, and as an ocean freight forwarder. FMC OFF list, <http://www2.fmc.gov/oti/FF.aspx>, last visited Sept. 22, 2015. In its opposition to the motion, Combustion appears to acknowledge that the reference to UniGroup Worldwide – UTS is incorrect, Combustion Opp. at 1, and the Complaint verification discussed below states “UniGroup Worldwide, Inc.” Because the parties agree that Respondent’s name in the Complaint is incorrect, Respondent’s name is changed to UniGroup Worldwide, Inc., in the caption.

Sacha Vincent, Combustion’s Managing Director, signed the Complaint on page 7 using Combustion’s address. (*See* Complaint ¶ 1.) A stamp reading “Barclays Bank, Tunbridge Wells, 208813, 30 Apr 2015, 05” appears below Vincent’s signature. The following is handwritten next to the stamp: “Signature witnessed, 30/4/2015, YM Redman, YM Redman, 1353268.”¹

In its motion to dismiss, UniGroup cites the Commission rule requiring complaints to be “sworn” and “verified” and contends that Combustion’s Complaint does not meet this requirement.

¹ “YM Redman” is the best guess of the undersigned regarding this name.

(Motion to Dismiss at 3 and 3 n.4.) On July 17, 2015, Combustion filed a Motion for Leave to Amend Complaint to Provide Additional Verification. Combustion contends that "Sacha Vincent signed and verified the Complaint." (Motion to Amend ¶ 2.)

5. Combustion wishes to resolve any issues or disputes regarding the verification by filing a Complaint with a separate verification page, as attached to this Motion as Exhibit A.
6. Specifically, Combustion wishes to resolve any issues regarding the verification of the Complaint to ensure that the attached Complaint can be used as evidence, to the extent evidence is needed, in opposition to UniGroup's Motion to Dismiss, as Combustion states in its Opposition to Respondent's Motion to Dismiss, also filed today.

(Motion to Amend.) The attached Complaint, identical to the original, has an additional page with the following statement: "I state under penalty of perjury under the laws of the United States of America that the foregoing is true and correct." See 46 C.F.R. § 502.6(c)(1) (permitting use of unsworn declaration in place of verification).

On July 24, 2015, UniGroup filed a statement of non-opposition to the motion.

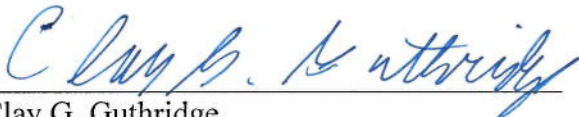
UniGroup hereby notifies the Commission and counsel for Combustion that UniGroup does not oppose Combustion's Motion to Amend. UniGroup's Statement of Non-Opposition to the Amendment does not waive any defenses UniGroup may have should the Presiding Officer not grant the pending Motion to Dismiss, including a statute of limitations defense to the Complaint.

(Respondent UniGroup Worldwide, Inc.'s Statement of Non-Opposition to Combustion Store Limited's Motion to Amend Complaint at 2.)

In consideration of the foregoing, it is hereby

ORDERED that the caption be amended to identify UniGroup Worldwide, Inc., as respondent. It is

FURTHER ORDERED that Complainant's Motion for Leave to Amend Complaint to Provide Additional Verification be **GRANTED** without prejudice to the parties' arguments regarding the verification of the original Complaint and without waiving any defenses that UniGroup may have.


Clay G. Guthridge
Administrative Law Judge